



U.S. Department
of Transportation
**Research and
Special Programs
Administration**

400 Seventh St., S.W.
Washington, D.C. 20590

SEP 19 2001

DOT-E 12832

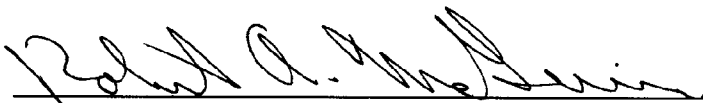
EXPIRATION DATE: December 31, 2001

1. GRANTEE: Federal Emergency Management Agency (FEMA) and persons conducting operations under the direction of government officials from FEMA and their designees.
2. PURPOSE AND LIMITATION: This emergency exemption authorizes the transportation in commerce of hazardous materials used to support the recovery and relief efforts to, from and within the disaster areas of New York City, New York and the Pentagon in Arlington County, Virginia under conditions that may not meet the Hazardous Materials Regulations. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR, Parts 171 through 180
5. BASIS: This emergency exemption is based on a September 14, 2001 application from the Federal Emergency Management Agency and a determination that it is necessary to avoid a risk of significant harm to persons or property.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper shipping name -- Hazardous materials description	Hazard Class/ Division	Identi- fication Number	Packing Group
Hazardous Materials listed in the 49 CFR other than radioactive materials	Class 1, 2, 3, 4, 5, 6, 8, 9	As Applicable	As Applicable

7. SAFETY CONTROL MEASURES: None, other than requirements imposed by FEMA officials and their designees.
8. SPECIAL PROVISIONS: Operations under this exemption are limited to those persons under the direction of the FEMA.
9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicles, rail freight, cargo vessel, cargo aircraft only, passenger-carrying aircraft.
10. MODAL REQUIREMENTS: None.

Issued in Washington, D.C.:



Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

SEP 19 2001

(DATE)

PO: RRP